

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
SHAWNDELLE JONES,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ARIEL PEREZ, Shield No. 21839, NYPD POLICE
OFFICER BRETT HEAGNEY-SCIAMATORE, Shield
No. 14161, NYPD POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 17, 2021

Yours, etc.

C. Cass Luskin

C. Cass Luskin, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER ARIEL PEREZ, 41 PCT, 1035 Longwood Ave, Bronx, NY 10459
OFFICER BRETT HEAGNEY-SCIAMATORE, 41 PCT, 1035 Longwood Ave, Bronx,
NY 10459

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INDEX NO.:VERIFIED COMPLAINT**JURY TRIAL DEMANDED**

Plaintiff Shawndelle Jones, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 24, 2020, at approximately 11:00 p.m., Plaintiff Shawndelle Jones, while lawfully in a vehicle at or near the intersection of Garrison Avenue and Hunts Point Avenue, County of the Bronx, State of New York, was subject to an unlawful and unreasonable stop, arrest, and detention by defendant Police Officers. Plaintiff was deprived of his constitutional, common law and statutory rights when the individual defendants unlawfully and unreasonably stopped, detained, falsely imprisoned, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Shawndelle Jones is a resident of the state of New York.

3. New York City Police Officer Ariel Perez, Shield No. 21839, is and was at all times relevant herein an Officer with the New York City Police Department.

4. New York City Police Officer Ariel Perez, Shield No. 21839, is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, New York City Police Officer Ariel Perez, Shield No. 21839, was assigned to the 41st Police Precinct of the NYPD.

6. New York City Police Officer Brett Heagney-Sciamatore, Shield No. 14161, is and was at all times relevant herein an Officer with the New York City Police Department.

7. New York City Police Officer Brett Heagney-Sciamatore, Shield No. 14161, is being sued in their individual and official capacity.

8. Currently and at all times relevant herein, New York City Police Officer Brett Heagney-Sciamatore, Shield No. 14161, was assigned to the 41st Police Precinct of the NYPD.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. New York City Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on September 24, 2021.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On September 24, 2020, at approximately 11:00 p.m., Plaintiff was lawfully in a vehicle at or near the intersection of Garrison Avenue and Hunts Point Avenue, County of the Bronx, State of New York, when the defendant Police Officers unlawfully and unreasonably arrested him and caused him to be falsely imprisoned.

19. On the above date, Plaintiff was in a vehicle that was pulled over by an unmarked police vehicle driven by defendant police officers.

20. There was no lawful basis for the stop of the vehicle.

21. Plaintiff was not the driver of the vehicle, nor was the vehicle registered to him.

22. Defendant police officers immediately ordered all the occupants out and searched the vehicle.

23. Plaintiff was handcuffed, directed to stand at the back of the vehicle and look away from the vehicle while defendant police officers searched it.

24. Without giving any additional information, Plaintiff was ordered by defendant officers to get into the back of a police vehicle and then transported to the 41st Police Precinct on Longwood Avenue in the Bronx.

25. At the 41st Precinct, defendant police officers searched Plaintiff and took his phone and other property items taken from him.

26. Plaintiff was then photographed and placed into a holding cell at the 41st Precinct.

27. Later on, Plaintiff was taken to an interrogation room where he was interrogated by defendant officers without the presence of his attorney.

28. Several hours after the interrogation, defendant officers took a DNA swab from Plaintiff.

29. Plaintiff voluntarily gave the Defendant officers DNA.

30. In the morning, defendant officers transported Plaintiff to Bronx Central Bookings.

31. At Bronx Central Bookings, Plaintiff was again searched and photographed and has his retinas scanned.

32. Plaintiff remained at Central Booking for approximately 24 more hours before he went before a Judge.

33. While Plaintiff was in custody awaiting arraignment, the defendant police officers provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

34. Specifically, the defendant police officers falsely stated to the Bronx County District Attorney's Office that Plaintiff was engaged in Criminal Possession of a Weapon, to wit, a firearm, and related charges.

35. Due to the falsehoods of defendant officers, the arraigning Judge set bail on Plaintiff in the amount of \$10,000.

36. Plaintiff was unable to make his bail and was transferred to Riker's Island.

37. Plaintiff spent approximately two (2) days on Riker's Island.

38. On Monday September 28, 2020, the Plaintiff's bail conditions were modified to Supervised Release.

39. Due to the change in Plaintiff's bail conditions, he was released from Riker's but still had various and onerous conditions of his bail on the case.

40. In mid-2020, Plaintiff appeared and testified before a Grand Jury in Bronx County.

41. The Grand Jury voted to dismiss all charges against Plaintiff.

42. The criminal complaint against Plaintiff was dismissed and sealed on or about June 9, 2021.

43. All told, between his detention, numerous court appearances, and meeting to prepare his grand jury testimony with counsel, Plaintiff missed approximately 10 days of work.

44. Plaintiff is and was employed by Rotavele, an elevator repair company, where he is a foreman and receives approximately \$68,000 annually.

45. Furthermore, despite his case being dismissed, Plaintiff is still unable to retrieve his cell phone, valued at approximately \$1,000.

46. Plaintiff suffered emotionally from the horrific conditions at Riker's and afterwards from the stress and uncertainty of having a pending serious felony charge.

47. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

48. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

49. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

50. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

51. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION **Unlawful Stop, Question, and Search**

52. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

53. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

54. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

55. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

58. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

59. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

60. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

61. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

62. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

63. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

THIRD CAUSE OF ACTION
Negligent Infliction of Emotional Distress

67. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

68. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

69. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

70. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

74. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

75. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

76. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FIFTH CAUSE OF ACTION**Failure to Intervene**

77. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

78. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

79. Defendants failed to intervene to prevent the unlawful conduct described herein.

80. As a result of the foregoing, Plaintiff's suffered serious, debilitating and permanent injury, his liberty was restricted for an extended period of time, he was put in fear of his safety, his injuries worsened, he did not receive necessary medical treatment, and he was humiliated and subject to other physical constraints.

81. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Violation of Fourth And Fourteenth Amendment Rights:****Denial of Right to Fair Trial/Due Process**

85. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

86. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

87. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

88. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

89. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

90. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION **Malicious Prosecution**

94. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

95. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

96. Defendants commenced and continued a criminal proceeding against Plaintiff.

97. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

98. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

JURY DEMAND

99. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Shawndelle Jones demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 17, 2021

By: C. Cass Luskin
C. Cass Luskin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER ARIEL PEREZ, 41 PCT, 1035 Longwood Ave, Bronx, NY 10459
OFFICER BRETT HEAGNEY-SCIAMATORE, 41 PCT, 1035 Longwood Ave, Bronx,
NY 10459

ATTORNEY'S VERIFICATION

C. CASS LUSKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 17, 2021

C. Cass Luskin
C. CASS LUSKIN